

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1241

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO ANIMALS; AMENDING CHAPTER 35, TITLE 25, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 25-3514B, IDAHO CODE, TO PROVIDE FOR THE PROTECTION OF WORKING ANIMALS AND TO CLARIFY APPLICABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 35, Title 25, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 25-3514B, Idaho Code, and to read as follows:

25-3514B. PROTECTION OF WORKING ANIMALS. (1) The right to utilize working animals for the mutual benefit and welfare of working animals and those the working animals serve shall be guaranteed. No county, municipality, state agency, or political subdivision shall enact or enforce any ordinance, regulation, or rule that is more restrictive than state law or that terminates, bans, or effectively bans, by creating undue financial hardship, on-the-job use of working animals or a working animal enterprise.

(2) For purposes of this section, "working animal" means any animal used for the purpose of performing a specific duty or function in commerce or service, including but not limited to animals involved in hunting, entertainment, including horse riding and carriage riding, transportation, education, exhibition, agritourism, ranching, farming, logging, or service.

(3) This section shall not apply to cockfighting or dogfighting as provided for in sections 25-3506 and 25-3507, Idaho Code.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.